HEADNOTE

"1. A decision on an application pursuant to Art. 59 UPCA / R. 190 RoP needs to be appealed within 15 days after service of the order pursuant to Art. 73(2)(a) UPCA and R. 224.1(b) RoP even if it is contained in a decision in the main proceedings in one document that is called 'Decision'; the Court's decision on a R.190 RoP application still takes the form of an order, to which R. 220.1(c) and R. 224.1(b) RoP apply.

2. An excusable error can, in exceptional circumstances, justify a derogation from the rule that the time period for lodging an appeal is a mandatory time limit that cannot be extended. A wrong indication of a time period applicable to an order referred to in R. 220.1(c) RoP is in itself insufficient to constitute exceptional circumstances, because a representative exercising all due care should have been aware that the applicable time period for lodging an appeal is 15 days after service of the order.

3. Leaving aside whether R. 242.2(a) RoP, stating that the Court of Appeal may exercise any power within the competence of the Court of First Instance, implies that a party may lodge an application pursuant to R. 190 RoP for the first time during appeal proceedings, such an application is held inadmissible under the circumstances of the case.

4. An application that is substantially the same in terms of the requested evidence to be produced as an application that was already filed and decided upon in substance at first instance, failing new facts justifying its refiling, is not a request which has not been submitted by a party during proceedings before the Court of First Instance that may, at the discretion of the Court of Appeal, under the conditions of R. 222.2 RoP, be allowed on appeal. Thus, R. 222.2 RoP does not apply to such a request and the only procedural remedy against its dismissal is lodging a (timely) appeal.

5. A refiled R. 190 RoP application, i.e. requesting substantially the same evidence to be produced, would only be admissible on appeal if justified by new facts that could not reasonably have been available during the first instance proceedings. That is because allowing a refiling of essentially the same , and

> *dismissed , R. 190 RoP application on appeal that is not based on new facts would lead to a circumvention of the appeal mechanism set forth in the UPCA and Rules of Procedure and the strict time limits applicable thereto, which serve legal certainty of third parties and procedural efficiency.*
> *6. R. 222.2 RoP would apply by analogy to an admissible refiled R.190 application, i.e. whose filing is justified by new facts."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Appeal

PATENT
EP 1 552 399

INTEGRATED CIRCUIT AND METHOD FOR ESTABLISHING TRANSACTIONS

KEYWORDS
Applicable time period for appeal concernin...
excusable error
refiled application on appeal
wrong or incomplete appeal information or ...

Article 59 Order to produce evidence

SUMMARY
The Court of Appeal Luxembourg ruled on an appeal concerning an integrated circuit and method for establishing transactions. The patent at issue relates to integrated circuit and method for establishing transactions. According to the headnotes of the decision, appeals of Rule 190 applications must be lodged within 15 days of service of the order, even when that order is included in a larger decision document in the main proceedings. An excusable error can only justify an extension of the mandatory 15-day appeal period in exceptional circumstances, and a mere incorrect indication of the time limit does not qualify as such an exception. A Rule 190 application filed for the first time during appeal proceedings is inadmissible under the circumstances presented in this case. An application requesting substantially the same evidence as one already decided at first instance cannot be treated as a new request under the discretionary provisions of Rule 222.2, and the only remedy against its dismissal is a timely appeal. A refiled Rule 190 application can only be admitted on appeal if new facts that were unavailable at first instance justify its refiling, in order to prevent circumvention of the appeal mechanism and strict procedural time limits. The discretionary admission provisions of Rule 222.2 would apply by analogy to an admissible refiled Rule 190 application that is justified by new facts.